

26STCV02453 26STCV02453

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-06-26

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Case Number: 26STCV02453 Hearing Date: June 26, 2026 Dept: 9

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The Court's 2/13/26 Initial Status Conference required the parties to file a Joint Report in advance of the Initial Status Conference addressing all of the following:

1. Parties and Counsel: Please list all presently named class representatives and presently named

defendants, together with all counsel of record, including counsel's contact and email information.

2. Appearance by defendants: Please indicate whether defendant has filed a Notice of Appearance

or Responsive Pleading to the Complaint, and, if so, indicate the filing date(s).

3. Potential Additional Parties: Does any plaintiff presently intend to add more class

representatives? If so, and if known, by what date and by what name? Does any plaintiff presently

intend to name more defendants? If so, and if known, by what date and by what name? Does any

appearing defendant presently intend to file a

cross-complaint? If so, who will be named.

4. Erroneously Named Parties: If the complaint names the wrong person or entity, why is the party

improperly named? What is the proposed procedure to correct this error?

5. Adequacy of Proposed Class Representative(s): Is one or more named plaintiffs an inadequate

class representative? Explain.

6. Estimated Class Size: What is the estimated class size?

7. Other Actions with Overlapping Class Definitions/Related Cases: Please list other cases with

overlapping class definitions. Please identify the court, the short caption title, the docket number, and

the case status.

8. Potentially Relevant Arbitration and/or Class Action

Waiver Clauses: Please include a sample of

any clause of this sort. The parties must summarize their views on this issue.

9. Potential Early Crucial Motions: What are the significant core issues in the case? Please identify

efficient ways to resolve those issues. The vehicles may include:

- Early motions in limine
- Early motions about particular jury instructions
- Demurrers

- Motions to strike
- Motions for judgment on the pleadings, and
- Motions for summary judgment and summary adjudication.

10. Class Contact Information: Does plaintiff need class contact information from the defendant's

records? If so, do the parties consent to an "opt-out" notice process (as approved in *Belaire-West*

Landscape, Inc. V. Superior Court (2007) 149 Cal.App.4th 554, 561) to precede defense delivery of this

information to plaintiff's counsel? If the parties agree on the notice process, who should pay for it?

Should there be a third-party administrator?

11. Protective Orders: Parties considering an order to protect confidential information from general

disclosure should begin with the model protective orders found on the Los Angeles Superior Court

Website under "Civil Tools for Litigators."

12. Discovery: Do the parties agree on a plan? If not, can the parties negotiate a compromise? At

minimum, please summarize each side's views on discovery. The Court generally allows discovery on

matters relevant to class certification, which (depending on circumstances) may include factual issues

also touching the merits. The Court generally does not permit extensive or expensive discovery relevant

only to the merits (for example, detailed damages discovery)
unless a persuasive showing establishes

early need. If any party seeks discovery from absent class
members, please estimate how many, and

also state the kind of discovery you propose¹

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13. Insurance Coverage: Is there insurance for indemnity or
reimbursement?

14. Alternative Dispute Resolution: Please discuss ADR and
state each party's position about it. If

pertinent, how can the Court help identify the correct
neutral and prepare the case for a successful

settlement negotiation?

15. Timeline for Case Management: Please recommend dates and
times for the following:

- The next status conference, if needed. The court does not
schedule status conferences for most

cases. Rather, the court gives deadlines for the filing of
motions for class certification with nonappearance case management reviews set
a few days after the filing deadlines.

- A schedule for alternative dispute resolution, if it is
relevant.

- A filing deadline for the motion for class certification.

- Filing deadlines and descriptions for other anticipated
non-discovery motions.

16. Electronic Service of Papers and eFiling: The Court will issue an Order requiring an electronic

service provider. While the parties are free to choose one of the two services shown below, this Court

(Department 9) prefers that the parties select:

⌚ Case Anywhere (<http://www.caseanywhere.com>)

o The parties are not required to select Case Anywhere, but may choose instead

⌚ File & Serve Xpress (<https://secure.fileandservexpress.com>)

On April 20, 2026, the Court ordered the parties to file a Joint Initial Status Conference Report by no later than 06/18/2026 in compliance with the Court's Initial Status Conference order.

The parties have failed to comply. No Joint Initial Status Conference Report has been filed.

On the Court's own motion, the Initial Status Conference scheduled for 06/26/2026 is continued to 07/10/2026 at 10:00 AM in Department 9 at Spring Street Courthouse.

The parties are to file a Joint Initial Status Conference Report by no later than 07/02/2026 in compliance with the Court's Initial Status Conference order. Failure to comply may result in the Court setting an OSC re sanctions.

Plaintiff's Counsel is ordered to give notice to all other parties and file proof of service of such.